

21STCV44465 21STCV44465

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-08

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Case Number: 21STCV44465 Hearing Date: September 8, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

8, 2026 TRIAL

DATE: September 8, 2026

CASE: U.S. Bank National Association, As Trustee for Velocity

Commercial Capital Loan Trust 2019-3 v. Sannette Gite, As Trustee of the Vaughn
Family Trust, et al.

CASE NO.: 21STCV44465

PLAINTIFF

AND CROSS-DEFENDANT MARA ENTERPRISES'

MOTION

IN LIMINE NO. 3

I. INTRODUCTION

On September

1, 2026, cross-defendant Mara Enterprises ("Mara") moved ex parte for permission to file an emergency motion in limine (MIL) No. 3 to exclude damages evidence produced on August 28, 2026 by defendant and cross-complainant Sannette Gite ("Gite"). On the same day, cross-defendant U.S. Bank National Association, as Trustee for Velocity

Commercial Capital Loan Trust 2019-3 (“U.S. Bank”), filed a joinder to Mara’s ex parte application.

On

September 2, 2026, the court granted the ex parte application. The court construed Mara’s ex parte as the moving papers and set an expedited briefing schedule for the MIL with a hearing date of September 8, 2026.

On

September 3, 2026, Gite filed an opposition.

On

September 4, 2026, Mara filed a reply.

On the same day, U.S. Bank filed a reply.

II. LEGAL STANDARD

A motion in limine must present the specific evidence sought to be excluded. “Until the evidence is actually offered, and the Court is aware of its relevance in context, its probative value, and its potential for prejudice, matters related to the state of the evidence at the time an objection is made, the Court cannot intelligently rule on admissibility.” (Kelly v. New West Federal Savings (1996) 49 Cal.App.4th 659, 671.) Instead of a motion in limine, the proper procedure is to make an objection at the time the evidence is offered, which serves to focus the issue and to protect the record. (Id.)

Accordingly, a motion in limine must specify the evidence, clearly state the exclusion, and explain why it applies.

Further, Local Rule 3.57(a) requires that motions made for the purpose of precluding the mention or display of inadmissible and prejudicial matter in the presence of the jury must be accompanied by a declaration that includes the following:

§§§

1. Specific

identification of the matter alleged to be inadmissible and prejudicial; §§§

§§

2. A representation to the

court that the subject of the motion has been discussed, with opposing counsel, and that opposing counsel has either indicated that such matter will be mentioned or displayed in the presence of the jury before it is admitted in evidence or that counsel has refused to stipulate that such matter will not be mentioned or displayed in the presence of the jury unless and until it is admitted in evidence; §§§

§§

3. A statement of the specific

prejudice that will be suffered by the moving party if the motion is not granted; and §§§

§§

4. If the motion seeks to

make binding an answer given in response to discovery, the declaration must set forth the question and the answer and state why the use of the answer for impeachment will not adequately protect the moving party against prejudice in the event that evidence inconsistent with the answer is offered. §§§

III. DISCUSSION

Mara

and U.S. Bank (together, “Cross-Defendants”) seek exclusion of documents upon which Gite intends to rely to prove her damages. They argue exclusion is warranted because Gite did not list these documents in the Joint Exhibit List and did not exchange them as part of the trial exhibit exchange five days before the August 18, 2026 Final Status Conference. Instead, Gite waited to produce these documents on the evening of August 28, 2026—five court days before the trial date—and only after Gite’s further deposition and the deposition of Mara’s damages experts had been completed.

The MIL is meritorious. LASC Local Rule 3.25 as well as this court's Final Status Conference (FSC) Order require that the parties exchange every trial exhibit and identify each exhibit and objection in the joint list. Gite failed to observe these rules. As a result, Gite's belated document production has deprived Cross-Defendants of evaluating Gite's damages claim. This is precisely the sort of "trial by ambush" tactic that LASC Local Rule 3.25 is designed to thwart. Given the numerous trial continuances and the prejudice to Cross-Defendants, exclusion is warranted.

In opposition, Gite spills much ink attempting to reframe the MIL as improperly seeking a discovery sanction. Gite misses the point. The MIL is based primarily on Gite's failure to list the late produced documents on the Joint Exhibit List and to exchange the documents at the time appointed by the FSC Order and Local Rule 3.25. Gite does not address this argument at all and thus concedes the point.

IV. CONCLUSION

Mara's MIL No. 3 is GRANTED.

Dated: September 8,
2026

Brock T. Hammond

Judge of the
Superior Court